

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1322

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 34-1114, IDAHO CODE, TO REVISE PROVISIONS REGARDING AN AFFIDAVIT IN LIEU OF PERSONAL IDENTIFICATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-1114, Idaho Code, be, and the same is hereby amended to read as follows:

34-1114. AFFIDAVIT IN LIEU OF PERSONAL IDENTIFICATION. If a voter is not able to present personal identification as required in section 34-1113, Idaho Code, the voter may complete an affidavit in lieu of the personal identification. The affidavit shall be on a form prescribed by the secretary of state and shall require the voter to provide the voter's name, and address, and either the voter's date of birth or the voter's Idaho driver's license or identification card number. The voter shall sign the affidavit. The judges of election shall verify the information against the voter registration records prior to issuing a ballot. Any person who knowingly provides false, erroneous, or inaccurate information on such affidavit shall be guilty of a felony.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.